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Environmental Working Group: California Bill Seeks to Keep School Children Safe From Harmful Food Dyes

March 13, 2024 | Targeted News Service (USA)
Section: Public Policy Groups | 882 Words
OpenURL Link

WASHINGTON, March 13 -- The Environmental Working Group issued the following news release on March 12, 2024:

On March 12, a bill to ban six harmful food dyes and titanium dioxide from food provided in California's public schools was introduced by Assemblymember Jesse Gabriel (D-Encino).

If enacted, Assembly Bill 2316 would ban Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3 and the food additive titanium dioxide. The chemicals have been linked to behavioral problems in children.

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Gabriel. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity and neurobehavioral harms.

This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Last year, Gabriel successfully authored, and Gov. Gavin Newsom signed into law, the California Food Safety Act (https://www.ewg.org/news-insights/news-release/2023/10/california-first-state-enact-ban-four-harmful-chemicals-food), which banned potassium bromate, propyl paraben, BVO and Red Dye No. 3 from food sold, delivered and manufactured in the state.

In 2021, the California Office of Environmental Health Hazard Assessment released a study finding that many food dyes and colorants are known to make some children vulnerable to behavioral difficulties and decreased attention.

Other human studies have linked these dyes to inattentiveness, learning difficulties and restlessness. And titanium dioxide has been shown to cause DNA damage and harm to the immune system.

"Many children rely on school meals as a source of their daily nutrition and calorie intake," said Tasha Stoiber, Ph.D., senior scientist with the Environmental Working Group. "Kids deserve wholesome foods that don't negatively impact their ability to learn, and parents deserve the confidence that the schools they're sending their kids to aren't serving them food that may harm them."

Assembly Bill 2316 is co-sponsored by EWG and Consumer Reports. The bill will be referred to a policy committee and receive its first hearing this spring.

Toxic chemicals

Thousands of chemicals are allowed for use in food sold in the U.S. Many of the food chemicals that the Food and Drug Administration has reviewed have not been evaluated for decades, even when new science is available. For instance:

* Titanium dioxide, which has been linked to damage to DNA and harm to the immune system, hasn't been assessed since 1966. In 2022, the European Union prohibited it from use in food offered for sale, but it is still allowed in food sold in the U.S.

* Red Dye No. 40 has not been evaluated for health risks since 1971. Many studies show it may pose a risk to brain development in children, hyperactivity and even cancer.

* Yellow Dye No. 5 has been approved for use since 1931. The FDA affirmed its use with good manufacturing practices in 1969.

* Yellow Dye No. 6 was approved for use in 1931, and the FDA reaffirmed its use in 1986.

* Blue Dye No. 1 has been approved for use since 1931. Its use was affirmed in 1969.

* Blue Dye No. 2 was last reviewed in 1983.

* Green Dye No. 3 has been allowed for use since 1931 and hasn't been reviewed since 1982.

"Why are foods with these toxic dyes being served in schools?" said Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful, especially to some children. We need to protect this vulnerable group, especially from being exposed at school, a place where they eat meals and are expected to learn," Little said.

"We appreciate Assemblymember Gabriel's efforts to remove these harmful dyes and colorants from these products," she added.

Children have lower tolerance levels to chemical exposure than adults, and their developing bodies make them especially vulnerable.

"These dangerous dyes should not be allowed in foods sold in schools, because they put kids at risk for hyperactivity and other neurobehavioral issues," said Brian Ronholm, director of food policy at Consumer Reports.

"Removing these harmful dyes from school foods will protect the health and well-being of kids in California. Consumer Reports applauds Assemblyman Gabriel for introducing this critical food safety legislation," he added.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But the FDA does not adequately regulate additives.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Melanie Benesh, EWG's vice president of government affairs. "In the absence of federal leadership, states like California continue to step up to keep us safe from toxic chemicals we and our families enjoy."

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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Founded in 1936, Consumer Reports has a mission to create a fair and just marketplace for all. Widely known for our rigorous research and testing of products and services, we also survey millions of consumers each year, report extensively on marketplace issues, and advocate for consumer rights and protections around safety as well as digital rights, financial fairness, and sustainability. CR is independent and nonprofit.

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Original text here: https://www.ewg.org/news-insights/news-release/2024/03/california-bill-seeks-keep-school-children-safe-harmful-food

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- **Citation (apa Style)**
  Environmental Working Group: California Bill Seeks to Keep School Children Safe From Harmful Food Dyes. (2024, March 13). *Targeted News Service (USA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/197C7C3D08285D18.